

Tribunal Legal Briefing

This briefing pulls together the main statutory and practical points that sit behind the landlord evidence file.

The recorded comparables support the proposed rent and place it below the adjusted median of £1297.50 pcm.

Statutory framework

This pack is prepared on the basis of Housing Act 1988 section 13(2) and section 13(4), as amended for assured tenancies from 1 May 2026.

The new rent must be proposed on Form 4A, served with at least two months notice, aligned to the tenancy period, and timed so that the 52-week / 53-week anti-drift rule is satisfied.

What the tribunal considers

The tribunal considers the market rent for the property on the open market, assuming the same terms, letting circumstances, and tenant obligations unless the evidence shows a meaningful difference.

Comparable selection, adjustment discipline, and evidence freshness are therefore central. Unsupported or stale comparables weaken the landlord case even where the notice itself is valid.

Practical hearing points

Current banding: Moderate likelihood of challenge | Strong evidence.

Stay consistent with the report wording. Do not overstate the data. If the evidence is mixed, acknowledge that plainly and explain why the proposed figure still sits within a reasonable market range.

Points the file still has to prove

The landlord still needs to show that the notice was validly served, that the proposed start date satisfies the statutory timing rules, and that the proposed rent is the figure best supported by the comparable evidence on the tribunal date.

A clean service record, a stable chronology, and current comparables usually matter more than broad statements that the increase felt reasonable at the time it was proposed.

If service is not valid or cannot be proved, the tribunal may reject or discount the notice file before considering market rent.

Common weakness points

Watch for stale comparables, missing source dates, unsupported manual overrides, or a mismatch between the dates in Form 4A, the proof of service record, and the narrative documents.

If one comparable is challenged, be ready to show why the remaining comparables still support the proposed rent or where the nearest supported alternative figure sits.